



CHAPTER cli.

An Act to make the township of Formby in the county of Lancaster a separate urban district to confirm an agreement relating to the transfer of property and liabilities to confer powers upon the Urban District Council in relation to the seashore and for other purposes. A.D. 1905.

[4th August 1905.]

WHEREAS the township or parish of Formby in the county of Lancaster is part of the West Lancashire rural district but has become urban in character and is further increasing and requires an urban administration :

And whereas in the year one thousand nine hundred a memorial was presented to the county council by ratepayers of the said township praying that an order might be made under the Local Government Act 1888 converting the said township into an urban district :

And whereas the county council being satisfied that a *prima facie* case had been made out caused a local inquiry to be held upon the sixth day of April one thousand nine hundred in accordance with the provisions of the said Act and at that local inquiry an agreement was made between the promoters of the order and the rural district council that all matters of financial adjustment including compensation for loss of rateable value should be referred to the clerk to the county council for his decision :

And whereas the county council made an order which was intended to carry such agreement into effect but in consequence of doubts as to whether such agreement could be carried into effect without the authority of Parliament rescinded the order before the same was confirmed by the Local Government Board:

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And whereas a further agreement has been made as to the details of such adjustment as aforesaid and it is expedient that an urban district should be created and an urban district council elected for that district and that the council should be empowered and bound to carry such agreement into effect:

And whereas it is expedient that the council should have further powers in addition to those conferred by the Public Health Acts for the regulation of the seashore within the district and that the other provisions in this Act contained should be made:

And whereas the objects aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Formby Urban District Council Act 1905.

Interpre-
tation.

2. In this Act the following words and expressions have the meanings hereby assigned unless the subject or context otherwise requires:—

“The county council” means the county council for the administrative county of Lancaster;

“The rural district” means the rural district of West Lancashire;

“The rural district council” means the rural district council of the rural district;

“The parish council” means the parish council for the parish or township of Formby;

“The district” means the urban district of Formby in the county of Lancaster as constituted by this Act;

“The Council” means the Urban District Council of the district;

“The district fund” and “general district rate” mean the district fund and general district rate of the district;

“The clerk” means the clerk to the Council and includes any person duly authorised to discharge temporarily the duties of that office; A.D. 1905.

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or securities of the Council;

“The Public Health Acts” means the Public Health Act 1875 and the Acts amending the same.

Unless the subject or context otherwise requires words and expressions to which meanings are assigned by the Public Health Acts have in this Act the same respective meanings.

3. This Act shall be divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Formation of District and Constitution of Council.

Part III.—Transfer of Property Duties and Liabilities.

Part IV.—Seashore.

Part V.—Finance.

Part VI.—Miscellaneous.

Division of
Act into
Parts.

PART II.

FORMATION OF DISTRICT AND CONSTITUTION OF COUNCIL.

4. An urban district is hereby formed consisting of the township of Formby in the county of Lancaster and shall be known by the name of “the Formby Urban District.” Constitution of district.

5.—(1) The district shall for purposes of elections of the Council be divided into four wards to be termed respectively Freshfield Ward Duke Street Ward Old Town Ward and Raven Meols Ward. Division into and boundaries of wards.

(2) The boundaries of the wards (except on the seaward side of wards bounded by the sea) shall be those shown on the

A.D. 1905. — map signed in triplicate by the Right Honourable Henry de Vere Baron Barnard Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred.

(3) Such map shall within two weeks after the passing of this Act be deposited in the Private Bill Office of the House of Lords with the clerk of the county council and with the clerk of the rural district council and copies thereof certified by the clerk to the rural district council to be true shall be sent as soon as may be after such deposit to the Board of Agriculture and Fisheries to the Local Government Board and to the Board of Inland Revenue.

(4) The map deposited with the clerk to the rural district council shall as soon as may be after the appointment of a clerk by the Council be handed over to the clerk and deposited by him at the offices of the Council.

Returning officer at first election. 6. The clerk to the rural district council shall be returning officer for the purpose of the first election of urban district councillors for the district and if he is unable or incapable to act as such returning officer then such other person as shall be nominated in writing by the chairman of the county council shall be returning officer and the returning officer shall convene and attend the first meeting of the Council.

Date of first election. 7. The times for the several proceedings preliminary to at and in connexion with the first election of the urban district councillors shall be such as will secure the ascertainment of the result of the election within the ten days preceding the thirtieth day of September one thousand nine hundred and five and the councillors then elected shall come into office and hold their first meeting as soon as practicable after that date.

Number of members. 8. The number of members of the Council shall be twelve three of whom shall be elected for each ward.

Conduct of election. 9. The election shall subject to the provisions of the Local Government Act 1894 be conducted according to rules framed under that Act by the Local Government Board.

Rotation of members. 10.—(1) On the fifteenth day of April one thousand nine hundred and seven the fifteenth day of April one thousand nine hundred and eight and the fifteenth day of April one thousand nine hundred and nine one of the members elected for each ward in the year one thousand nine hundred and five shall retire.

(2) If in any ward the election of members in the year one thousand nine hundred and five be not contested the order in

which the persons then elected shall go out of office shall be A.D. 1905.
regulated by a resolution to be passed by the Council.

(3) If in any ward the election in the year one thousand nine hundred and five be contested the members of the Council then elected for that ward shall retire from office in the manner following namely:—

On the fifteenth day of April one thousand nine hundred and seven the member elected by the lowest number of votes:

On the fifteenth day of April one thousand nine hundred and eight the member elected by the next lowest number of votes:

On the fifteenth day of April one thousand nine hundred and nine the member elected by the highest number of votes.

(4) If in any case the number of votes is equal the year in which the members then elected shall retire from office shall be regulated by the Council.

(5) In each of the years one thousand nine hundred and seven one thousand nine hundred and eight one thousand nine hundred and nine and in every subsequent year one member of the Council shall be elected for each of the four wards and subject to the provisions of this Act the election and retirement of members shall be governed by the Local Government Act 1894 and any rules framed thereunder.

PART III.

TRANSFER OF PROPERTY DUTIES AND LIABILITIES.

11.—(1) On and after the date of the first meeting of the Council all the rights liabilities obligations and property which are attached to or vested in the rural district council shall so far as regards the district and subject to the provisions of the agreement set forth in the schedule to this Act pass to and vest in the Council but until such date the powers rights duties capacities liabilities obligations and property of the rural district council shall continue to be exerciseable by attached to and vested in the rural district council.

Vesting of
rights and
property of
rural dis-
trict council.

(2) If at the passing of this Act or at or prior to the date of the first meeting of the Council any action or proceeding or any cause of action or of proceeding is pending or existing by

A.D. 1905. — or against the rural district council under or arising out of or in relation to any contracts or obligations or liabilities entered into or incurred by the rural district council for or with respect to the district or any part thereof exclusively the same shall not be in anywise prejudicially affected by reason of the passing of this Act but may be continued prosecuted and enforced by or against the Council and the Council shall indemnify and save harmless the rural district council in respect of all claims damages costs and expenses by reason of under or in relation to any such action proceeding or cause of action or of proceeding.

(3) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments entered into or made by the rural district council or their predecessors in relation exclusively to any part of the district shall be of as full force and effect against or in favour of the Council and may be continued and enforced as fully and effectually as if instead of the rural district council or their predecessors the Council had done or suffered the same or been a party thereto.

As to bye-laws in force in district.

12. Any byelaws made by the rural district council and in force in the contributory place of Formby and any regulations made by them under the Dairies Cowsheds and Milkshops Order 1885 shall for a period of one year from the date of the first meeting of the Council unless previously revoked or repealed so far as they relate to the district by other byelaws duly made and confirmed or by other regulations duly made as the case may be by the Council be deemed to be in force in the district in like manner and with the like effect in all respects as if the said byelaws and regulations had been made by the Council and as if the Council and the district were respectively referred to therein in lieu of the rural district council and that portion of the rural district which comprises the contributory place of Formby.

Confirmation of scheduled agreement.

13.—(1) The agreement between the rural district council the parish council and Alfred Dickinson set forth in the schedule to this Act (herein-after called "the scheduled agreement") is hereby confirmed and made binding upon the rural district council the Council and the said Alfred Dickinson respectively and full effect may and shall be given thereto as if the Council had originally been parties to the scheduled agreement and as if the provisions of the scheduled agreement had been expressly enacted in this Act.

(2) The arbitrator nominated by the scheduled agreement shall in addition to the powers by that agreement conferred and subject to the terms of that agreement have all the powers of an arbitrator appointed under section 62 of the Local Government Act 1888 and any award made by such arbitrator shall be deemed to be an award under that section. A.D. 1905.

14.—(1) Subject to the provisions of the scheduled agreement every officer who by virtue of this Act or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary shall be entitled to have compensation paid to him for such pecuniary loss and in determining such compensation regard shall be had to the conditions and other circumstances required by subsection (1) of section 120 of the Local Government Act 1888 and the compensation shall not exceed the limit therein mentioned. The local authority to whom application shall be made for compensation (if any) shall be the rural district council and any sum payable as compensation in pursuance of this subsection shall be paid by the rural district council and charged upon their common fund and the provisions of subsections (2) to (6) of the said section shall apply with the substitution for “the Treasury” of “the Local Government Board” and for “the county council” of “the rural district council” and the provisions of subsection (7) of the said section shall apply with the substitution for “the same or any other county council” of “the rural district council or any other local authority” and with such other modifications (if any) in such subsections as may be necessary. Compensation to officers.

(2) Samuel Cartwright the assistant overseer for the parish of Formby shall in reference to his employment to make out the rate books and demand notes for special expenses rate levied from time to time by the overseers of Formby be considered to be an officer within the meaning of this section and of section 120 of the Local Government Act 1888 and shall be entitled to compensation for and in respect to the loss of such employment but notwithstanding the provisions contained in subsection (1) of this section the local authority to whom application shall be made for such compensation shall be the Council and any sum payable as compensation in pursuance of this subsection shall be paid by the Council and the provisions of subsections (2) to (7) of section 120 of the Local Government Act 1888 as varied by

A.D. 1905. subsection (1) of this section shall apply with the substitution for the "rural district council" of the "Council."

Abolition of
parish
council.

15. The parish council shall on the date of the first meeting of the Council cease to exist and any powers and duties transferred by the Local Government Act 1894 to the parish council or to the parish meeting of the parish shall be vested in exerciseable by and imposed on the persons or authorities in whom they would have been vested or by whom they would have been exerciseable or on whom they would have been imposed if the said township had been included in an urban district on the appointed day within the meaning of that Act Any property or liabilities of the parish council held or incurred by virtue of or for the purposes of such powers or duties shall be transferred to and vested in such persons or authorities as aforesaid and any property or liabilities held or incurred otherwise than by virtue of or for the purposes of such powers and duties shall be transferred to and vest in the Council.

Audit of
accounts of
parish
council.

16. The accounts of the parish council and of their committees and officers (if any) shall be made up to the date of the first meeting of the Council and shall be audited by the district auditor in like manner and with the like incidents and consequences as if this Act had not been passed and the enactments relating to the accounts of a parish council and to the audit of such accounts and to all matters incidental thereto and consequential thereon and the rules made by the Local Government Board under such enactments shall apply to such audit and for the purposes of such audit the parish council shall be deemed to continue to exist and their officers (if any) to remain in office as if this Act had not been passed Provided that the audit may be held as soon as possible after the date of the first meeting of the Council any statutory provision or regulation as to the time of the holding of the audit of such accounts to the contrary notwithstanding Any sum certified by the district auditor at such audit to be due from any person shall be paid by such person to the treasurer of the Council.

Appoint-
ment of
overseers.

17. The appointment of overseers and any future appointment of an assistant overseer for the township of Formby shall be made in like manner as if such township had been included in an urban district on the appointed day within the meaning of the Local Government Act 1894 The overseers who hold office

for the said township on the day when this Act comes into operation shall hold office until their successors are appointed. A.D. 1905.

18. The persons holding the office of rural district councillors for the township of Formby on the date of the first meeting of the council shall cease to act as district councillors for the rural district but shall continue to hold the office of guardians of the poor of that township until the date on which they would have retired if this Act had not been passed. Rural district councillors for Formby to continue to act as guardians.

19. The county council shall have the like power of amending Parts II. and III. of this Act except so much thereof as relates to the scheduled agreement as if those Parts had been an order of the county council made under the Local Government Act 1888 for the formation of a new urban district. Power to county council to amend Parts II. and III. of Act.

PART IV.

SEASHORE.

20. In this Part of this Act "the seashore" means the seashore foreshore and all the beach and sands of the estuary of the River Mersey or Irish Sea below high-water mark of the highest spring tide within the district. Interpretation of seashore.

21. The Council for the prevention of danger obstruction nuisance or annoyance to persons using the seashore may make and enforce byelaws to— Byelaws as to seashore.

- (1) Regulate the erection or placing on the seashore or on such part or parts thereof as may be prescribed by such byelaws of any booths tents sheds stands and stalls (whether fixed or movable) or vehicles for the sale or exposure of any article or thing or any shows exhibitions performances swings roundabouts or other erections vans photographic carts or other vehicles whether drawn or propelled by animals persons or any mechanical power and the playing of any games on the seashore and generally regulate the user of the seashore for such purposes as shall be prescribed by such byelaws;
- (2) Regulate the user of the seashore for riding and driving;
- (3) Provide for the preservation of order and good conduct among persons frequenting the seashore.

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Byelaws as
to bathing.

22. The Council may make byelaws—

- (1) For appointing and limiting the places on the seashore from which persons of each sex may bathe without using a bathing machine tent or room and for prohibiting the use of any other place on the seashore for bathing without using a bathing machine tent or room;
- (2) For the preservation of decency and order at public bathing places on the seashore and for appointing and limiting the places on the seashore from which persons of the male and female sex may bathe together and from which they may bathe separately;
- (3) For regulating the hours during which bathing may take place from public bathing places on the seashore and for prohibiting the use of such places except during the hours so fixed; and
- (4) For prescribing the use of decent and sufficient bathing garments.

Limitations
as to making
of byelaws.

23. The following provisions shall have effect with respect to byelaws made under the provisions of either of the two preceding sections of this Act the marginal notes whereof are “Byelaws as to seashore” and “Byelaws as to bathing” :—

- (1) Such byelaws shall not apply to any part of the seashore which shall for the time being be lawfully enclosed and appropriated by the lords for the time being of either the manor of Formby or the manor of Raven Meols :
- (2) The Council shall within seven days from the making by them of any such byelaws send a copy thereof to each of the lords of the said manors and if before the confirmation or approval thereof or within the time limited for disallowance thereof either of the said lords of the manors shall object in writing to the confirming authority to any such byelaw such objection shall be considered by the confirming authority and if in the opinion of the confirming authority the objection shall be reasonable the byelaw in question shall not be confirmed or approved or shall be disallowed.

Tents and
huts for
bathing or
shelter.

24. Section 171 of the Public Health Act 1875 and section 69 of the Town Police Clauses Act 1847 incorporated

thereby shall so far as applicable extend and apply to tents and huts for bathing or shelter within the district save to those erected on so much of the seashore as shall for the time being be lawfully enclosed and appropriated by the lords for the time being of the manors of Formby and Raven Meols or either of them. A.D. 1905.

25. The Council may require the owner or lessee of any bathing machine to provide or employ boats boatmen and attendants and to provide life-saving apparatus for the purpose of ensuring the safety of bathers and may prescribe the qualification of such boatmen and attendants and the Council may employ and pay boatmen for the purpose of protecting persons whilst bathing. For protection of bathers.

26.—(1) Subject to the provisions of the section of this Act the marginal note whereof is “Saving rights of lords of manors of Formby and Raven Meols” the Council may grant upon such terms and conditions as they may think fit licences for pleasure boats and pleasure vessels to be let for hire or to be used for carrying passengers for hire and to the boatmen or persons assisting in the charge or navigation of such boats and vessels and may charge a fee of not exceeding one shilling for every such licence. Power to license pleasure boats &c.

(2) Any such licence may be granted for such period as the Council may think fit and may be suspended or revoked or endorsed by the Council whenever they shall deem such suspension or revocation or endorsement to be necessary or desirable in the interests of the public. Provided that the existence of the power to suspend revoke or endorse the licence shall be plainly set forth in the licence itself.

(3) No person shall let for hire any pleasure boat or pleasure vessel not so licensed nor shall any person carry or permit to be carried passengers for hire in any pleasure boat or vessel not so licensed.

(4) No person shall act as boatman or assist in the charge or navigation of any pleasure boat or pleasure vessel when let for hire or when carrying passengers for hire who is not licensed by the Council as aforesaid.

(5) A licence under this section shall not be required for any boat or vessel duly licensed by or under any regulations of the Board of Trade or for any boatman or person assisting in the charge or navigation of such boat or vessel.

(6) No person shall carry or permit to be carried in any pleasure boat or pleasure vessel a greater number of passengers

A.D. 1905. — for hire than shall be specified in the licence applying to such boat or vessel and every owner of any such boat or vessel shall before permitting the same to be used for carrying passengers for hire paint or cause to be painted on a conspicuous part of the said boat or vessel the number of persons which it is licensed to carry.

(7) Every person who shall act in contravention of the provisions of this section shall for each offence be liable on summary conviction to a penalty not exceeding two pounds.

(8) Any person deeming himself aggrieved by the granting withholding suspension revocation or endorsement of any licence under the provisions of this section may appeal to a petty sessional court held for the district after the expiration of two clear days after such granting withholding suspension revocation or endorsement. Provided that the person so aggrieved shall give twenty-four hours' written notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as they see fit and to award costs to the successful party such costs to be recoverable summarily as a civil debt.

Saving
rights of
lords of
manors of
Formby and
Raven
Meols.

27. Nothing in this Part of this Act shall be deemed or taken to prejudice diminish alter or affect any estates rights titles privileges powers or authorities in over or under the sea-shore or any part thereof vested in or exerciseable by the lords for the time being of the manors of Formby and Raven Meols or any person rightfully claiming under them or him.

PART V.

FINANCE.

Power to
borrow.

28. The Council may from time to time in addition to any moneys which they will or may be authorised to borrow under the provisions of the Public Health Acts or any public general Act borrow at interest on security of the district fund and general district rate the following sums (that is to say):—

(A) For paying the costs charges and expenses of and in relation to this Act as herein-after defined the sum requisite for the purpose;

(B) For the purposes of the other payments to be made under the scheduled agreement the sum of ten thousand and twenty pounds;

and with the approval of the Local Government Board such further moneys as the Council may require for any of the purposes of this Act. A.D. 1905.

In calculating the sums which the Council may borrow under the provisions of any other enactment any sums they may borrow under this Act shall not be reckoned and the powers of the Council as to borrowing and re-borrowing under this Act shall not be restricted by any of the provisions of the Public Health Acts.

29. The following sections of the Public Health Act 1875 shall extend and apply mutatis mutandis to and in relation to all mortgages made under the powers of this Act (that is to say) :— Provision as to mortgages.

Section 236 (Form of mortgage) ;

Section 237 (Register of mortgages) ;

Section 238 (Transfer of mortgages) ; and

Section 239 (Receiver may be appointed in certain cases).

30. All moneys borrowed under the powers of this Act for the purposes respectively mentioned in the following subsections of the section of this Act the marginal note whereof is "Power to borrow" shall be repaid within any period not exceeding the following respective periods (herein-after respectively referred to as "the prescribed period") (that is to say) :— Repayment of borrowed moneys.

For the purpose in subsection (A) five years from the date of the passing of this Act ;

For the purposes in subsection (B) thirty years from the date or dates of borrowing.

Moneys borrowed with the approval of the Local Government Board shall be repaid within such periods as that Board may sanction.

31. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest or by means of a sinking fund or partly by such instalments and partly by a sinking fund and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months if by yearly repayments or within six months if by half-yearly repayments from the time of Mode of payment off of money borrowed.

A.D. 1905. borrowing the sum in respect of which the payment is made or from the date of the passing of this Act as the case may be.

Sinking
fund.

32.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is herein-after called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate

per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council
(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

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(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided always that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as that Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local

A.D. 1905. Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purposes as the Council with the consent of the Local Government Board may determine.

Sinking fund may be adjusted in certain events.

33. If the Council out of the proceeds of the sale or disposition of lands or other moneys received on capital account repay any principal moneys borrowed under the powers of this Act the payments to any sinking fund applicable to the repayment of such principal moneys may be reduced to such extent and upon such terms as may from time to time be approved by the Local Government Board.

Return to Local Government Board as to repayment of debt.

34.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as that Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered

by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court. A.D. 1905.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default shall have been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

35. The Council may except as herein-after provided re-borrow for the purpose of paying off any moneys borrowed or re-borrowed under this Act which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Council within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow. Provided that the Council shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose. Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period. Power to re-borrow.

36. A person lending money to the Council shall not be bound to inquire as to the observance by the Council of any provision of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent by him or of any part thereof. Protection of lenders from inquiry.

- A.D. 1905.
Expenses of execution of Act.
- 37.** All expenses incurred by the Council in carrying into execution the provisions of this Act except such of them as are properly chargeable to capital and payable out of borrowed moneys shall so far as the payment thereof is not otherwise provided for be paid out of the district fund and general district rate.
- Audit of accounts.
- 38.** Section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and their committees and officers under this Act and to the audit of such accounts.
- Mode of raising money.
- 39.** The Council may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another Provided that the provisions of the section of this Act whereof the marginal note is "Sinking fund" shall apply in lieu of the provisions of section 15 of the Local Loans Act 1875.
- Application of capital moneys paid by Council to rural district council.
- 40.** Any sum paid to the rural district council by the Council in pursuance of the scheduled agreement or of any award thereunder shall be treated as capital and applied in the repayment of debt or with the sanction of the Local Government Board for any other purpose for which capital money may be applied Provided that if any sum is so applied in the repayment of debt such application shall be in addition to and not in substitution for any other mode of extinguishment except to such extent and upon such terms as may be approved by the Local Government Board.
- Inquiries by Local Government Board.
- 41.**—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.
- (2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

PART VI.

A.D. 1905.

MISCELLANEOUS.

42. All the provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 (except so much thereof as relates to byelaws of a rural sanitary authority) shall apply to all byelaws made by the Council under the powers of this Act. Provided also that the Secretary of State shall be the confirming authority for byelaws made under the section of this Act whereof the marginal note is "Byelaws as to seashore."

General provisions as to byelaws.

43. Save as herein expressly provided all informations and complaints under and for the breach of any of the provisions of this Act or of any byelaws made thereunder or of the Town Police Clauses Act 1847 or of the Towns Improvement Clauses Act 1847 as incorporated with the Public Health Act 1875 or the Town Police Clauses Act 1889 may be laid and made by any officer of the Council duly authorised in that behalf or by the clerk or by any police officer acting for or within the district.

Informations &c. by whom to be laid.

44. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed by or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of penalties.

45. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses costs or charges in case of dispute respecting the same may be settled and determined by a court of summary jurisdiction before whom any offender is convicted.

Damages and charges to be settled by justices.

46. All penalties recovered by the Council or any officer of the Council on their behalf under this Act or any byelaw thereunder shall be paid to the treasurer to the Council and carried by him to the credit of the district fund or to such other fund as the Council direct.

Penalties to be paid over to treasurer.

A.D. 1905.
—
Saving for
indictments.

47. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Crown
rights.

48. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Expenses of
Act.

49.—(1) The costs charges and expenses of the rural district council preliminary to and of and incidental to preparing and obtaining this Act and of and in relation to the scheduled agreement shall after taxation by the taxing officer of the House of Lords or of the House of Commons be paid in the first instance by the rural district council out of any moneys in their hands and shall be repaid to them by the Council within three months after the first meeting of the Council.

(2) Any sum so paid by the Council shall be paid out of moneys to be borrowed by the Council under this Act but may in the first instance be paid by the Council out of the district fund and general district rate and moneys so paid shall be recouped by and charged to the moneys to be borrowed under this Act.

The SCHEDULE referred to in the foregoing Act.

A.D. 1905.

AN AGREEMENT made the twelfth day of December one thousand nine hundred and four between the WEST LANCASHIRE RURAL DISTRICT COUNCIL (herein-after called "the Rural District Council") of the first part the PARISH COUNCIL FOR THE PARISH OR TOWNSHIP OF FORMBY (herein-after called "the Parish Council") of the second part and ALFRED DICKINSON of Ormskirk in the county of Lancaster solicitor and clerk to the Formby Parochial Committee of the Rural District Council of the third part.

WHEREAS the Parish Council are desirous of facilitating the creation of an urban district council for the parish or township of Formby in accordance with an agreement arrived at in the year 1900 between the Rural District Council and certain ratepayers of Formby who had presented a memorial to the county council for the administrative county of Lancaster for the creation of such urban district council :

And whereas doubts have arisen as to whether such agreement could be carried into effect without an Act of Parliament :

And whereas the Parish Council have requested the Rural District Council to promote a Bill for such Act and have agreed subject to the confirmation of Parliament upon the terms of financial adjustment with the Rural District Council and upon the amount of compensation payable to the said Alfred Dickinson for loss of his remuneration as clerk to the said Formby Parochial Committee :

Now therefore it is hereby agreed as follows :—

1. The Rural District Council shall promote during the next session of Parliament available for private Bill legislation a Bill to create an urban district of Formby and to provide for the election of an Urban District Council (herein-after called "the Council") for that district.

2. The Council shall within six months after their first meeting pay to the Rural District Council and the Rural District Council shall accept in full satisfaction for all matters of financial adjustment and as compensation for loss of rateable value the sum of nine thousand seven hundred and twenty pounds.

3. The Rural District Council shall retain for the exclusive use of their district other than the proposed urban district all their property except such portion thereof as has been purchased or acquired out of funds raised as special expenses on the said township of Formby and such last-mentioned portion of property shall be transferred to and vested in the Council.

4. The Council shall take over the rights and obligations of the Rural District Council under all contracts heretofore made by the Rural District

A.D. 1905. Council relating solely to the said township and shall indemnify and save harmless the Rural District Council in respect of all claims in relation to such contracts.

5. The Council shall take over the following loans which were charged upon Formby as a separate contributory place and shall indemnify and save harmless the Rural District Council against all claims for principal and interest accruing due after the date of the first meeting of the Council or otherwise in respect thereof (that is to say) :—

Fire brigade (under sanction of the Local Government Board dated the 12th day of July 1899) :

Lighting (under sanction of the Local Government Board dated the 13th day of January 1899) :

Sewerage (under sanction of the Local Government Board dated the 10th day of March 1903).

6. The Rural District Council shall pay to the Council or account to the Council for any balance of the said loans remaining unexpended at the date of the first meeting of the Council.

7. The Rural District Council shall indemnify and save harmless the Council against all claims for principal or interest accruing due after the date of the first meeting of the Council or otherwise in respect of the loans of the Rural District Council other than those specifically above mentioned.

8. Any balance standing on the date of the first meeting of the Council in the general expenses account of the Rural District Council in favour of the township of Formby shall be deemed to be the property of the overseers of such township and any balance standing at the same date in the said account against the said township shall be deemed to be a liability of the overseers of the said township and any balance standing on the said date in the special expenses account of the said township in the accounts of the Rural District Council in favour of or against such township shall be deemed to be the property or a liability as the case may be of the Council.

9. The costs charges and expenses preliminary to and of and incidental to preparing and obtaining the intended Act and of this agreement shall be borne by the Council.

10. If any question arises between the Rural District Council and the Council as to the interpretation of or otherwise in connexion with this agreement or as to any matter other than the matters herein-before expressly dealt with which would if the intended urban district had been constituted by order under the Local Government Act 1888 have been matter for adjustment under section 62 of that Act such question shall be referred to an arbitrator to be appointed by the Local Government Board and any award so made by him shall be final and binding upon all parties.

11. The Council shall within three months of the date of their first meeting pay and the said Alfred Dickinson shall accept the sum of three hundred pounds in satisfaction of his claim for the loss of remuneration as clerk to the said Formby Parochial Committee by reason of the creation of the urban district or other the provisions of the intended Act.

12. This agreement is made subject to the passing of the intended Act and to the approval of Parliament and to such alterations as Parliament may think fit to make therein Provided that if any material alteration be made therein either party may withdraw from the same. A.D. 1905.

In witness whereof the Rural District Council have caused their common seal to be hereunto affixed and the chairman and two other members of the Parish Council have hereunto on behalf of that Council set their hands and the said Alfred Dickinson hath hereunto set his hand the day and year first before written.

The common seal of the West Lancashire
Rural District Council was hereto affixed
in the presence of



ALFRED DICKINSON
Clerk.

HENRY UNDERWOOD
Chairman

West Lancashire Rural District Council.

Signed on behalf of the Formby Parish
Council by Thomas Birtwistle the
presiding chairman and by Thomas
Carlyle and Henry Porter members of
that Council in the presence of

THOMAS BIRTWISTLE.
THOMAS CARLYLE.
HENRY PORTER.

S. CARTWRIGHT
Clerk to the Formby Parish Council.

Signed by the said Alfred Dickinson in
the presence of

ALFRED DICKINSON.

WM. BENTHAM
Assistant clerk to the Ormskirk Union Ormskirk.

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